



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 13 2004

DOT-E 8678
(SIXTH REVISION)

EXPIRATION DATE: July 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Eurotainer SAS
Puteaux Cedex, France
(U.S. Agent: Eurotainer U.S., Inc.
Houston, Texas)
(Former Grantee: Eurotainer, SA, CCR, SATI)

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the transportation in commerce of certain Division 2.1 and 2.2 gases in non-DOT specification IMO Type 5 portable tanks. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a) in that non-DOT specification packaging is authorized.

5. BASIS: This exemption is based on the application of Eurotainer, SAS dated June 25, 2004, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description --	Hazard Class/ Division	Identification Number	Packing Group
1,1-Difluoroethane, or Refrigerant gas R 152a	2.1	UN1030	N/A
1,1,1,2-Tetrafluoroethane or Refrigerant gas R 134a	2.2	UN3159	N/A
1-Chloro-1,1-difluoroethane or Refrigerant gas R 142b	2.1	UN2517	N/A
Chlorodifluoromethane or Refrigerant gas R 22	2.2	UN1018	N/A
Chloropentafluoroethane or Refrigerant gas R 115	2.2	UN1020	N/A
Dichlorodifluoromethane or Refrigerant gas R 12	2.2	UN1028	N/A
Hexafluoropropylene compressed or Refrigerant gas R 1216	2.2	UN1858	N/A
Octafluorocyclobutane or Refrigerant gas RC 1318	2.2	UN1976	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification portable tank, mounted in an ISO frame, designed and constructed in accordance with Compagnie Francaise DeMateriel Ferroviaire drawing numbers K.30.5.22 and 3 K.30.5.22 dated July 31, 1979, technical specifications and calculations on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and in compliance with the following:

- (1) Code - Complies with ASME Code (not marked)
 Note: Portable tanks are to be postweld heat treated.
 No new construction is authorized.
- (2) Baffles - 2

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- (3) Sunshield - optional
- (4) Insulation - none
- | | | |
|--|--------------------------------|-------------------------------|
| (5) Model Number | C168AG2760 | C168AG3120 |
| (6) Water Capacity
(U.S. Gallons) | 4438.5 | 4438.5 |
| (7) Material | NF36205Avril179
A52FP steel | NF3620Avril179
A52FP steel |
| (8) Tank size (inches) | | |
| Outside diameter | 78.74 | 78.74 |
| Length | 236.61 | 236.61 |
| Shell thickness | 0.564 | 0.595 |
| Head thickness | 0.563 | 0.591 |
| Weld Joint efficiency | 1.0 | 1.0 |
| (9) Design pressure (PSIG) | 267 | 302 |
| (10) Test pressure, minimum
(PSIG) | 400 | 453 |
| (11) Tank surface area
(Square feet) | 441 | 441 |
| (12) Maximum Gross Weight (Pounds) | 52,911 | 52,911 |
| (13) Maximum Tare Weight (Pounds) | 14,770 | 16,534 |
| (14) Maximum Commodity Weight (Pounds) | 38,141 | 36,376 |
| (15) Openings - One, 18 inch diameter manhole; one, 2 inch
diameter manhole; one, 2 inch diameter vapor outlet;
one, 3 inch diameter liquid fill; two 2 inch diameter
safety relief valve pads; and one rotary gauge pad. | | |
| (16) Pressure Relief Devices - Two (2), 2 inch diameter
spring loaded safety relief valves. Model C168AG2760
portable tanks have pressure relief devices set to
discharge at a pressure between 267 psig and 293 psig
while Model C168AG3120 portable tanks have pressure
relief devices set to discharge at a pressure between | | |

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302 psig and 332 psig. Minimum total relief device capacity must be 612,000 SCFH. Each pressure relief device must be marked with a start-to-discharge pressure in psig and a rated relief device capacity in SCFH.

(17) G-Loadings: Vertical down 2; Vertical up 1; Longitudinal 2; and Tranverse 1.

b. TESTING - Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with § 180.605 as prescribed for DOT Specification 51 portable tanks.

c. OPERATIONAL CONTROLS -

(i) The rotary gauge may not be used with materials listed in paragraph 6 of this exemption. When these materials are transported, the rotary gauge must be removed and replaced by a blind flange and the tank loaded by weight.

(ii) No product may be shipped that has venting requirements exceeding 720,000 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in the Compressed Gas Association's (CGA) pamphlet S-1.2.

(iii) The tank must be filled so as not to be liquid full at less than or equal to 130°F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each portable tank must be plainly marked on both sides near the middle in letters at least two inches high on a contrasting background, "DOT-E 8678".

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- d. Hydrostatic test certificates for each tank must be kept on file by the manufacturer or owner at its principal business office and be made available to the OHMEA upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS:
- a. A current copy of this exemption must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this exemption.
- b. Shipments by container on flat car service (COFC) or trailer on flat car (TOFC) service are not authorized except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration (see § 174.63).
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

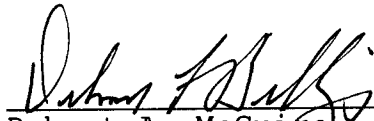
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS:

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

b. The owner of the tanks covered by this exemption must provide to the OHMEA a list of all shippers who have shipped under this exemption and a shipping experience report upon requesting renewal. The shipping experience report must contain approximate number of shipments made during the previous two years and any difficulties encountered.

Issued in Washington, D.C.:


b7 Robert A. McGuire
Associate Administrator for
Hazardous Materials Exemptions

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions>. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln

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The following are hereby granted party status to this exemption based on their application(s) submitted in accordance with § 107.107 or § 107.109, as appropriate:

Company Name City/State	Application Date	Issue Date	Expiration Date
DuPont Wilmington, DE	Jul 29, 2003	Aug 07, 2003	Jul 31, 2005

Robert A. McGuire
Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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Date